IN THE NATIONAL COMPANY LAW TRIBUNAL: CHANDIGARH BENCH

COURT No.1

(*through hybrid mode*)

ITEM No. 108

CP (CAA) No. 14/Chd/Pb/2023

(2nd motion)

IN THE MATTER OF:-

Akm Real Estate Developers Private Limited ...Transferor Company

Under Section: 230-232, CA 2013

Order delivered on 05.04.2024

CORAM:

SH. L. N. GUPTA
MEMBER (TECHNICAL)

SH. HARNAM SINGH THAKUR
MEMBER (JUDICIAL)

PRESENT:

For the petitioner	:	Mr. Rahul Jogi, Advocate with Ms. Deepali Garg, PCS
For the OL	:	Mr. Edward Augstine George
For the RD	:	Mr. Vineet Khatri, Company Prosecutor
For the Income Tax Dept.	:	None

ORDER

It is seen that despite instructions the Income Tax Department has failed to file its report in the present matter. Ld. counsel appearing for the petitioner submitted that he had informed the advocate of the Income Tax Department. However,Ld. counsel for the petitioner is directed to inform the Income Tax Officer of the concerned Income Tax Circle within five days and file the affidavit of service. The concerned Income Tax Officer is directed to file its observations/report in the matter within two weeks thereafter failing which it will be presumed that they have nothing to say in the matter. Let the copy of this order be sent by the Registry to the Chief Income Tax Commissioner of Chandigarh. A date is requested by Company Prosecutor appearing on behalf of the RD for filing his response as the reply is still under examination.

Request accommodated. Let the same be filed within two weeks with a copy in advance to the counsel opposite. Let the matter be listed on 17.05.2024.

Sd/-
(L. N. GUPTA)
MEMBER (TECHNICAL)

Sd/-
(HARNAM SINGH THAKUR)
MEMBER (JUDICIAL)

Tanvi